

STATE OF NEW YORK

2726--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 22, 2025

Introduced by M. of A. PAULIN, HEVESI -- read once and referred to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to the definition of family for purposes of services provided by voluntary foster care agency health facilities

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 1 of section 2999-gg of the public health law,
2 as added by section 1 of part N of chapter 56 of the laws of 2017, is
3 amended to read as follows:

4 1. In order for an authorized agency that is approved by the office of
5 children and family services to care for or board out children, to
6 provide limited health-related services as defined in regulations of the
7 department either directly or indirectly through a contract arrangement,
8 such agency shall obtain, in accordance with a schedule developed by the
9 department in conjunction with the office of children and family
10 services, a license issued by the commissioner in conjunction with the
11 office of children and family services to provide such services. Such
12 schedule shall require that all such authorized agencies operating on
13 January first, two thousand nineteen obtain the license required by this
14 section no later than January first, two thousand nineteen. Such
15 licenses shall be issued in accordance with the standards set forth in
16 this article and the regulations of the department which shall, at a
17 minimum, specify:

18 (a) mandated health services, which shall include, but not be limited
19 to, nursing and behavioral health services; general physical environment
20 requirements; minimum health and safety procedures; record management
21 requirements; quality management activities; and managed care liaison,
22 fiscal and billing activities; and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (b) to whom services may be provided, which shall include, but is not
2 limited to children and youth in foster care, and their families, which
3 for the purposes of this section shall include both the birth family and
4 the foster family; other families receiving child welfare services from
5 the authorized agency or the local departments of social services; and
6 students with disabilities placed by a committee on special education
7 pursuant to article eighty-nine of the education law. In determining
8 the criteria for licensure, regulations shall take into account the size
9 and type of each program, and shall be reasonably related to the
10 provision of medical services. Provided however, that a license pursuant
11 to this section shall not be required if such authorized agency is
12 otherwise authorized to provide the required limited-health-related
13 services to foster children under a license issued pursuant to article
14 twenty-eight of this chapter or article thirty-one of the mental hygiene
15 law. For the purposes of this section, the term authorized agency shall
16 be an authorized agency as defined in paragraph (a) of subdivision ten
17 of section three hundred seventy-one of the social services law.

18 § 2. This act shall take effect six months after it shall have become
19 a law.